

BC713870 BC713870

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-07-10

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Case Number: BC713870 Hearing Date: July 10, 2026 Dept: 406

CARLOUS PARKER, et al.,

Plaintiffs,

v.

PARKER'S TOWING &

SALVAGE, INC., et al.,

Defendants.

Case No.: BC713870

Hearing Date: July 10, 2026

[TENTATIVE]

order RE:

plaintiffs' motion to enforce settlement

BACKGROUND

On July 13, 2018, Plaintiffs Carlous

Parker and Renee Parker filed this action against Defendants Parker's Towing & Salvage, Inc., et al.

On September 4, 2020, Plaintiffs

filed a notice of settlement, listing the date of settlement as October 6,

2020.

On December 3, 2020, the Court held a hearing on Order to Show Cause Re: Dismissal (Settlement). There was no appearance by either party, and the Court ordered the complaint dismissed without prejudice.

On June 5, 2026, Plaintiffs filed the instant motion to enforce settlement.

DISCUSSION

The proof of service indicates that Plaintiffs served the motion by email to attorney Lorraine Anderson. However, the proof of service is defective because it does not list Ms. Anderson's email address. Moreover, the case was filed 8 years ago and disposed of 6 years ago. Due to the extensive passage of time, there is no indication that Ms. Anderson is still serving as Defendants' counsel. Thus, proper service requires that Plaintiffs personally serve the motion on Defendants directly.

CONCLUSION

Plaintiffs' motion to enforce settlement is DENIED without prejudice to Plaintiffs filing a properly served motion.